

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Andrew Ridge	Team: Squad #08	CCRB Case #: 201700042	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 01/01/2017 3:18 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 7/1/2018	Precinct: 75		
Date/Time CV Reported Sun, 01/01/2017 7:24 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sun, 01/01/2017 7:24 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Kenneth Rambert	28940	942811	075 PCT
2. POF Erika Palazzo	31536	955289	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Kenneth Rambert	Abuse: Police Officer Kenneth Rambert entered § 87(2)(b) in Brooklyn.	§ 87(2)(b)
B . POF Erika Palazzo	Abuse: Police Officer Erika Palazzo entered § 87(2)(b) in Brooklyn.	§ 87(2)(b)
C . POM Kenneth Rambert	Abuse: Police Officer Kenneth Rambert refused to provide his name to § 87(2)(b)	§ 87(2)(b)

Summary of Complaint

On January 1st, 2017, at approximately 3:18PM, Police Officer Kenneth Rambert and Police Officer Erika Palazzo, both of the 75th Precinct, arrived at § 87(2)(b), in Brooklyn, in response to a 911 call made by § 87(2)(b) a § 87(2)(b) for § 87(2)(b) § 87(2)(b), because § 87(2)(b) was having difficulty breathing. Shortly after two FDNY EMTs—EMT § 87(2)(b) and EMT § 87(2)(b) § 87(2)(b) arrived, PO Rambert and PO Palazzo entered the apartment in order to assist the EMTs in the treatment of § 87(2)(b) (**Allegation A and Allegation B**). The son of § 87(2)(b), § 87(2)(b), repeatedly told PO Rambert and PO Palazzo that he did not want them in the apartment. As the EMTs and officers were preparing to leave, § 87(2)(b) began to ask PO Rambert for his name, to which PO Rambert did not respond (**Allegation C**). Shortly afterwards, both police officers, the EMTs, and § 87(2)(b) left the apartment, and § 87(2)(b) was transported to a nearby hospital.

§ 87(2)(b) provided video footage of this incident.

Mediation, Civil and Criminal Histories

- This case was suitable for mediation and it was offered to § 87(2)(b) during his initial phone statement and during his in-person interview at the CCRB (BR01, BR02). In both instances, § 87(2)(b) rejected mediation.
- The NYC Office of the Comptroller responded to a request on March 21st, 2017, indicating that no notice of claim has been filed by § 87(2)(b) in regards to this incident (BR 03).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)

Civilian and Officer CCRB Histories

- This is the second complaint filed by § 87(2)(b) with the CCRB, and the first with FADO allegations (BR05).
- PO Rambert has been a member of service for ten years, and this is the fourth CCRB complaint filed against him (BR06). The four previously filed cases against PO Rambert have generated a total of five allegations, § 87(2)(g)
§ 87(2)(b)
- PO Palazzo has been a member of service for three years, and this is the first CCRB complaint filed against her (BR07).

Findings and Recommendations

Allegation A—Abuse of Authority: Police Officer Kenneth Rambert entered § 87(2)(b), in Brooklyn.

Allegation B—Abuse of Authority: Police Officer Erika Palazzo entered § 87(2)(b), in Brooklyn.

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b) testified that his father, § 87(2)(b) had been suffering from pneumonia, and that § 87(2)(b) called 911 because § 87(2)(b) was experiencing shortness of breath.

After about ten minutes, two EMTs, EMT § 87(2)(b) and EMT § 87(2)(b) arrived at § 87(2)(b)'s apartment, and went to living room, where § 87(2)(b) was. About five minutes after the EMTs arrived, § 87(2)(b) heard a knock at the front door of his apartment. When § 87(2)(b) opened the front door to the apartment, he saw PO Rambert and PO Palazzo standing outside in the hallway. § 87(2)(b) was in a distressed state because he felt that his father was dying, and he did not understand why PO Rambert and PO Palazzo had responded to a call for medical aid. § 87(2)(b) asked PO Rambert and PO Palazzo several times why they had come to his apartment, but neither officer responded. § 87(2)(b) was afraid of PO Rambert and PO Palazzo because he himself is in poor health, and was concerned that if the officers were to use TASERS on him, then he would die. For these reasons, § 87(2)(b) told PO Rambert and PO Palazzo several times that he did not want them inside his apartment. PO Palazzo pushed the front door of the apartment open and came inside, immediately followed by PO Rambert.

EMT § 87(2)(b) testified as a witness in regards to this incident (BR08). EMT § 87(2)(b) testified that while she could not recall who answered the door to the apartment, neither she nor EMT § 87(2)(b) met any opposition to their entry into the apartment, nor did § 87(2)(b) do anything to indicate that he was opposed to their presence in the apartment. § 87(2)(b) did not appear distressed over his father's illness because he was not saying anything to either EMT § 87(2)(b) or EMT § 87(2)(b).

After about five minutes, EMT § 87(2)(b) heard a knock at the door. § 87(2)(b) went to the front door of the apartment to look through a peep hole. While he was looking through the peep hole, § 87(2)(b) began to talk about how the police had come for him. § 87(2)(b) could not specifically describe § 87(2)(b)'s demeanor, but remembered that his tone of voice sounded "paranoid" to her. § 87(2)(b) attempted to calm § 87(2)(b) down by telling him that the police come with EMTs on all of their jobs, and that the police had come to help take care of § 87(2)(b) and not for him. After telling § 87(2)(b) this around two times, § 87(2)(b) opened the door to the apartment. § 87(2)(b) opened the door of the apartment at least wide enough for a person to enter. As soon as § 87(2)(b) did this, PO Rambert entered the apartment. EMT § 87(2)(b) could not see if PO Palazzo entered the apartment because the front door of the apartment was blocking her view of PO Palazzo. EMT § 87(2)(b) could not remember any conversation taking place between either officer and § 87(2)(b) before PO Rambert entered the apartment.

Directly after PO Rambert entered the apartment, § 87(2)(b) said something in an accusatory tone to the officers. EMT § 87(2)(b) could not remember what § 87(2)(b) said, but believed he told PO Rambert and PO Palazzo that he believed that they had come to harass him. § 87(2)(b) did not say word for word that he did not want the officers in the apartment, but from what he said and how he said it, he indicated that he did not want the police there. PO Rambert stayed by the front door of the apartment. At some point after PO Rambert entered the apartment, one of the officers asked the EMTs if it was necessary for them to remove § 87(2)(b) from the apartment. Either EMT § 87(2)(b) or EMT § 87(2)(b)

responded that taking this action was unnecessary, as § 87(2)(b) had listened to the EMTs when they had attempted to convince § 87(2)(b) to let the officers inside the apartment, and therefore seemed compliant enough to remain inside the apartment. EMT § 87(2)(b) could not recall § 87(2)(b) bringing up race issues in reference to not wanting PO Rambert inside the apartment. EMT § 87(2)(b) further testified that shortly after she and EMT § 87(2)(b) arrived, they both made the determination that § 87(2)(b) needed to be taken to the hospital because his condition was so serious.

EMT § 87(2)(b) testified as a witness in regards to this incident (BR09). § 87(2)(b), § 87(2)(g) § 87(2)(b) EMT § 87(2)(b) testified that as soon as he entered the apartment, he deemed it necessary to transport § 87(2)(b) to the hospital specifically because he was experiencing severe respiratory stress. When PO Rambert and PO Palazzo arrived at the apartment, both officers attempted to explain to § 87(2)(b) through the closed door that they had come to help § 87(2)(b). Both EMT § 87(2)(b) and EMT § 87(2)(b) also attempted to explain this to § 87(2)(b). Despite this fact, § 87(2)(b) was yelling and saying that he did not want the police inside his apartment.

For much of the incident, EMT § 87(2)(b) was facing away from the door as he was assessing the condition of § 87(2)(b). At some point shortly after the officers arrived, EMT § 87(2)(b) saw that the front door to the apartment had been opened about halfway, and that both PO Rambert and PO Palazzo had entered the apartment and were coming near to where he was. EMT § 87(2)(b) could not remember if either officer asked § 87(2)(b) if they could enter before coming inside the apartment. The presence of the officers made § 87(2)(b) § 87(2)(b) even more upset, and § 87(2)(b) began to yell louder and call the officers “facists.” EMT § 87(2)(b) could not recall § 87(2)(b) bringing up race issues in reference to not wanting PO Rambert inside the apartment. Around this time, one of the officers—EMT § 87(2)(b) could not say which—asked him and EMT § 87(2)(b) if they wanted them inside the apartment and that the EMTs did not tell the police that they wanted them to leave. EMT § 87(2)(b) testified that he wanted the police in the apartment for the safety of all parties involved, because from § 87(2)(b)'s aggressive behavior, EMT § 87(2)(b) did not know what § 87(2)(b) would do.

During a phone call made to Inv. Ridge, § 87(2)(b) § 87(2)(b), testified in regards to this incident (BR10). § 87(2)(b) testified that on her home visit to § 87(2)(b) she determined that § 87(2)(b)'s difficulty breathing was so severe that he needed to be taken to the hospital. As a result, § 87(2)(b) called 911. Before she made the call to 911, § 87(2)(b) was generally agitated and had been bringing up race issues in general with her. § 87(2)(b) could not remember specifically what § 87(2)(b) was talking about regarding race issues. § 87(2)(b) told § 87(2)(b) not to call 911, but § 87(2)(b) did so nonetheless.

§ 87(2)(b) did not do or say anything to resist entry and presence of the EMTs in the apartment. As soon as the police knocked on the front door of the apartment, § 87(2)(b) opened the door all the way. § 87(2)(b) asked PO Rambert and PO Palazzo why they had come to the apartment. One of the officers told § 87(2)(b) that they had come to ensure the safety of § 87(2)(b) and that they needed to assist the EMTs. As soon as one of the officers told § 87(2)(b) this, both PO Rambert and PO Palazzo entered the apartment. As soon as they went inside the apartment, both PO Rambert and PO Palazzo went into the living room and began to speak to the EMTs about the condition of § 87(2)(b).

§ 87(2)(b) . § 87(2)(b) was bringing up race issues in general with the officers. § 87(2)(b) could not remember specifically what § 87(2)(b) was saying, and did not mention § 87(2)(b) referencing PO Rambert's race as a reason for why § 87(2)(b) § 87(2)(b) did not want him inside the apartment. § 87(2)(b) felt that the presence of the police in the apartment was "routine" and not out of the ordinary.

In his testimony at the CCRB, PO Rambert stated he received a call for an aided case, but did not receive any specific information about this case (BR11). PO Rambert, PO Palazzo, and the EMTs all arrived at the front door to the apartment at the same time. The EMTs were situated in front of PO Rambert and PO Palazzo. After one of the EMTs knocked on the door, § 87(2)(b) § 87(2)(b) opened the door wide enough for a gurney to enter. From outside the apartment, PO Rambert could see into the living room where § 87(2)(b) and was able to specifically observe that § 87(2)(b) was having trouble breathing, and wanted to better assess why he and PO Palazzo had been called to the apartment.

From the start, § 87(2)(b) was using a raised voice to tell § 87(2)(b) that § 87(2)(b) did not need any help. EMT § 87(2)(b) and EMT § 87(2)(b) told § 87(2)(b) that § 87(2)(b) needed medical attention, and went into the apartment to where § 87(2)(b) was in the living room. Directly after the EMTs entered the apartment, PO Rambert and PO Palazzo followed them inside. Before they entered the apartment, § 87(2)(b) § 87(2)(b) did not specifically tell the EMS workers or PO Rambert and PO Palazzo that they could not enter the apartment. PO Rambert entered the apartment because from the hallway he could see that § 87(2)(b) was having trouble breathing.

After he went inside the apartment, PO Rambert stayed at the front door of the apartment in order to keep it open in case he needed to call back up. This was also a good vantage point for PO Rambert to observe what was happening so that he could ensure that everyone in the apartment was safe. After she went inside the apartment, PO Palazzo went to the entrance of the living room in order to assist § 87(2)(b) and the EMTs treat § 87(2)(b).

Near the end of the 30 minutes that PO Rambert and PO Palazzo were inside the apartment, § 87(2)(b) began to speak to PO Rambert and § 87(2)(b) who is black, about Black Lives Matter. Specifically, § 87(2)(b) referred to PO Rambert and § 87(2)(b) as "you people," and said that "you people" need to leave. PO Rambert and PO Palazzo asked the EMTs if they still wanted them there. Both EMT § 87(2)(b) and EMT § 87(2)(b) told PO Rambert and PO Palazzo that they wanted them to remain in the apartment. PO Rambert believed that § 87(2)(b) specifically did not want him and § 87(2)(b) inside the apartment during the incident because they were black.

§ 87(2)(b), § 87(2)(g) From outside the apartment, PO Palazzo could see that § 87(2)(b)'s chest was heaving. PO Palazzo determined that § 87(2)(b) was having difficulty breathing. PO Palazzo could not recall any conversation taking place between § 87(2)(b) and anyone else at the door. As soon as § 87(2)(b) opened the door, the EMTs went inside, and were directly followed by PO Rambert and PO Palazzo. PO Palazzo testified that she has been trained to assist an individual if she observes that they are having trouble breathing. PO Palazzo went inside the apartment to assist the EMTs in treating § 87(2)(b)'s respiratory distress. PO Palazzo believed that § 87(2)(b) told her and PO Palazzo that he did not want them to enter, but could not recall this interaction specifically, and could not say when it occurred. As she was entering the apartment, PO Palazzo told § 87(2)(b) that she had come to help his father. PO Palazzo believed that her telling § 87(2)(b)

§ 87(2)(b) this was the first interaction that either the officers or the EMTs had with § 87(2)(b). After this, PO Palazzo went directly to the living to assist the EMTs. Throughout the course of the incident, § 87(2)(b) repeatedly said that he wanted to be left alone.

People v. Greenleaf, 222 AD 2d 838 (1995) outlines three requirements that must be met to apply the emergency exception to the warrant requirement for an entry: "(1) The police must have reasonable grounds to believe that there is an emergency at hand and an immediate need for their assistance for the protection of life or property. (2) The search must not be primarily motivated by intent to arrest and seize evidence. (3) There must be some reasonable basis, approximating probable cause, to associate the emergency with the area or place to be searched (BR14)." These principles were applied in Brigham City v. Stuart, 547 U.S. 398 (2006) in which the Court ruled that the emergency exception applied when they possessed "an objectively reasonable basis for believing that an occupant is seriously injured or imminently threatened with such injury (BR15)."

PO Rambert and PO Palazzo testified that they responded to the scene and sought to enter the premises in order to render aid to § 87(2)(b). All parties testify that § 87(2)(b) expressed that he did not want the officers inside the apartment. PO Rambert testified that § 87(2)(b) specifically did not want him and § 87(2)(b) inside the apartment because of the fact that they were black, while other individuals rendering aid to § 87(2)(b) were not black. § 87(2)(b), § 87(2)(g)

Both officers testified to observing that § 87(2)(b) was in respiratory distress before they entered the apartment. Further, EMT § 87(2)(b) and EMT § 87(2)(b) both testified that § 87(2)(b) needed to be removed to the hospital because he was in severe respiratory distress. § 87(2)(b), § 87(2)(g)

Allegation C—Abuse of Authority: Police Officer Kenneth Rambert refused to provide his name to § 87(2)(b)

§ 87(2)(b) testified that at some point during the incident, he asked PO Rambert to show him his badge (BR02). When § 87(2)(b) asked PO Rambert this, PO Rambert told § 87(2)(b) that he did not need to see his badge, and turned his badge, which was located on his shoulder, away from § 87(2)(b). § 87(2)(b)

§ 87(2)(b) did not request this information from PO Palazzo because he was afraid of how she would react.

EMT § 87(2)(b) testified that after PO Rambert entered the apartment, § 87(2)(b) was speaking with PO Rambert (BR08). EMT § 87(2)(b) could not remember if § 87(2)(b) § 87(2)(b)

§ 87(2)(b) was also speaking with PO Palazzo. EMT § 87(2)(b) could not recall § 87(2)(b) § 87(2)(b) bringing up race issues or talking about Black Lives Matter.

After the initial conversation between § 87(2)(b) and PO Rambert, there was a period of calm during which § 87(2)(b) went to another room. After a short amount of time, EMT § 87(2)(b) EMT § 87(2)(b) and the officer began to prepare to leave the apartment by placing § 87(2)(b) on a stretcher. At this time, § 87(2)(b) approached the EMTs and officers and began to write on a notepad. § 87(2)(b) asked both EMT § 87(2)(b) and EMT § 87(2)(b) for their names. Both EMT § 87(2)(b) and EMT § 87(2)(b) responded to this request. § 87(2)(b) did not become more upset in response to hearing the names of the EMTs. § 87(2)(b) did not ask PO Rambert and PO Palazzo for their names.

§ 87(2)(b), § 87(2)(g) Beyond § 87(2)(b) calling both officer “Facists,” EMT § 87(2)(b) did not hear § 87(2)(b) bring up race issues or Black Lives Matter. § 87(2)(b) was speaking PO Rambert more than he was with PO Palazzo. EMT § 87(2)(b) testified that after he and EMT § 87(2)(b) provided § 87(2)(b) with their names, § 87(2)(b) went on to ask for an officer’s name and shield number twice or both officers’ name and shield number once. EMT § 87(2)(b) could not specify who § 87(2)(b) § 87(2)(b) asked, but EMT § 87(2)(b) could remember that whomever § 87(2)(b) requested this information of responded to § 87(2)(b) with the requested information each time that § 87(2)(b) requested it.

§ 87(2)(b) testified that before she made the call to 911, § 87(2)(b) was generally agitated and had been bringing up race issues with her (BR10). § 87(2)(b) could not remember specifically what § 87(2)(b) was talking about regarding race issues, but that he was generally “babbling” about the president and relations between white people and black people. At some point, § 87(2)(b) again brought up the same issues he had been talking about with § 87(2)(b) to the officers. § 87(2)(b) did not make any mention of race issues towards or about any officer, but continued to “babble” in the way that he had before the officers arrived. § 87(2)(b), § 87(2)(g)

PO Rambert testified that throughout the course of the incident, § 87(2)(b) appeared to direct his displeasure with presence of the officers towards him specifically, and that as he did so, § 87(2)(b) continued to bring up race issues and Black Lives Matter (BR11). PO Rambert attempted to calm down § 87(2)(b) by asking questions about § 87(2)(b). These questions appeared to further agitate § 87(2)(b). Whenever PO Palazzo asked § 87(2)(b) questions about § 87(2)(b), § 87(2)(b) § 87(2)(b) provided the requested information without hesitation.

At some point, § 87(2)(b) asked PO Rambert for his name and shield number. PO Rambert provided § 87(2)(b) with this information, and also told him that he was from the 75th Precinct. After PO Rambert provided § 87(2)(b) with this information, § 87(2)(b) said “Wait a second,” and began to make a recording on his

cell phone. § 87(2)(b) again asked PO Rambert for his name and shield number. PO Rambert did not

respond to § 87(2)(b)'s request because he had already responded to this request once, and because he felt that every time he spoke, it further agitated § 87(2)(b).

PO Palazzo testified that from where she was in the living room, she could hear that § 87(2)(b) was speaking with PO Rambert, but that could not hear what he was saying (BR12). PO Palazzo did not hear § 87(2)(b) talking about race issues, and did not hear him talking about Black Lives Matter. At some point during the incident, PO Palazzo turned around and saw that § 87(2)(b) was making a video with his phone. PO Palazzo heard PO Rambert say something along the lines of "You can video me if you want." At around this time, PO Palazzo also heard PO Rambert say his name and shield number twice loudly so that everyone in the apartment could hear him. PO Palazzo did not hear § 87(2)(b) request this information from PO Rambert. After PO Rambert provided § 87(2)(b) with this information, EMT § 87(2)(b) and EMT § 87(2)(b) began to lift § 87(2)(b) onto a stretcher in preparation for their departure from the apartment.

Video footage of the incident provided by § 87(2)(b) captures this portion of the incident (BR13). At the 00:35 minute mark, after PO Rambert can be heard saying "Let us take care of your father," § 87(2)(b) can be heard saying "Okay. Okay. Your name?" In response to this, PO Rambert can be heard saying "You just stand back, and ..." The remainder of this sentence is drowned out by § 87(2)(b)'s voice.



201700042_20170111_0945_DM.mp4

Patrol Guide 203-09: Public Contact—General states that members of the service must "Courteously and clearly state [their] rank, name, shield number and command, or otherwise provide them, to anyone who requests you to do so (BR16)."

§ 87(2)(g)

Squad: 8

Investigator: _____

Signature

Print

Date

Page 8

CCRB Case # 201700042

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date